

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

6. DAVID KNIGHT V. AUBREY KNIGHT

23FL0645

On April 28, 2026, Respondent filed a Request for Order (RFO) seeking orders to enforce payment of the \$600,000 equalization payment and an order for the court clerk to sign the QDRO as elisor. All required documents were served by mail and electronically on April 28th, however this is a post-judgment request and therefore service was to comply with Family Code § 215. There is no Declaration Regarding Address Verification as required.

On July 8th, Petitioner filed and served a Supplemental Declaration in Support of Responsive Declaration to Request for Order. He notes that he filed a Responsive Declaration to Request for Order on April 27th when Respondent first raised the requests via ex parte. By filing his responsive declaration and his supplemental declaration, the court finds that Petitioner waived any potential defect in service and as such, the matter may be reached on the merits.

Respondent asks that the clerk of court be appointed as elisor to sign the Qualified Domestic Relations Order (QDRO) for \$1,530,000 immediately. Respondent further requests enforcement of the court's April 9, 2026 order wherein Petitioner was ordered to use his retirement account to pay the \$600,000 equalization payment.

Petitioner opposes the request and states that he is willing to pay the \$600,000 equalization payment plus legal interest, \$5,000 in attorney's fees, and \$3,000 in Family Code § 271 sanctions however he disputes Respondent's request for \$1,530,000 which he argues is an attempt to shift the tax consequences to Petitioner. He asks that the parties be ordered to cooperate in preparing and executing a proper QDRO or other plan-compliant order that implements the Judgment and the April 9th ruling without any additional funds awarded for tax liability. He asks that court to deny Respondent's request for additional attorney's fees and costs not already ordered and award Petitioner reasonable attorney's fees and costs incurred in responding to the RFO. He further asks that Respondent be ordered to execute all documents necessary to transfer the family residence located on Hamblen Way in Cool, to Petitioner and, if she fails to do so, appoint the clerk of court to act as elisor and sign any such documents. He asks the court to deny any request for open-ended access to his property and make any further orders as deemed just and proper to enforce the terms of the Judgment.

It appears Petitioner is opposing requests that were brought before the court in Respondent's November 13, 2025 RFO. Hearing on that RFO was held on April 9, 2026 and

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any issues raised therein were already ruled upon therefore the court is not addressing them.

Respondent's requests are denied. The Judgment awarded Respondent \$600,000 gross. It does not assign Petitioner the tax liability for the equalization payment. In fact, much to the contrary, the judgment states that "[e]ach party shall timely file and pay his/her tax liability in connection with the tax return filed by said party." Judgement, § 10.02. Nothing in the Judgment awards Respondent additional monies to account for her tax liability. Accordingly, the parties are ordered to work together, in good faith, to prepare a QDRO that properly implements the terms of the Judgment and the court's April 9, 2026 orders only. Each party is to bear his or her tax liability on the amounts awarded therein.

Petitioner's request for an order directing Petitioner to execute all documents necessary to transfer the family residence to Respondent is outside the scope of the RFO and therefore, the court declines to rule on it in accordance with California Rule of Court rule 5.92(g)(2), "unrelated relief must be sought by scheduling a separate hearing using *Request for Order* (form FL-300)..." Cal. Rule Ct. § 5.92(g)(2). Nevertheless, Respondent is admonished to comply with the terms of the Judgment and failure to do so may result in award of attorney's fees to Petitioner if he is forced to bring a motion on this issue.

Petitioner's request for attorney's fees associated with responding to the present motion is denied as Petitioner failed to assert the statutory basis for his request, the amount requested, or any argument whatsoever to support this request.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: IT APPEARS PETITIONER IS OPPOSING REQUESTS THAT WERE BROUGHT BEFORE THE COURT IN RESPONDENT'S NOVEMBER 13, 2025 RFO. HEARING ON THAT RFO WAS HELD ON APRIL 9, 2026 AND ANY ISSUES RAISED THEREIN WERE ALREADY RULED UPON THEREFORE THE COURT IS NOT ADDRESSING THEM.

RESPONDENT'S REQUESTS ARE DENIED. THE PARTIES ARE ORDERED TO WORK TOGETHER, IN GOOD FAITH, TO PREPARE A QDRO THAT PROPERLY IMPLEMENTS THE TERMS OF THE JUDGMENT AND THE COURT'S APRIL 9, 2026 ORDERS ONLY. EACH PARTY IS TO BEAR HIS OR HER TAX LIABILITY ON THE AMOUNTS AWARDED THEREIN.

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PETITIONER'S REQUEST FOR AN ORDER DIRECTING PETITIONER TO EXECUTE ALL DOCUMENTS NECESSARY TO TRANSFER THE FAMILY RESIDENCE TO RESPONDENT IS OUTSIDE THE SCOPE OF THE RFO AND THEREFORE THE COURT DECLINES TO RULE ON IT.

PETITIONER'S REQUEST FOR ATTORNEY'S FEES ASSOCIATED WITH RESPONDING TO THE PRESENT MOTION IS DENIED AS PETITIONER FAILED TO ASSERT THE STATUTORY BASIS FOR HIS REQUEST, THE AMOUNT REQUESTED, OR ANY ARGUMENT WHATSOEVER TO SUPPORT THIS REQUEST.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.